

		requiring the full portions of the complaint sought to be struck be quoted and specified consecutively. Defendants are ORDERED to file an answer within 5 days. Defendants to give notice.
10	Garica vs. Providence St Jude Medical Center 30-2025-01517910-CU-MM-CJC	Demurrer to First Amended Complaint Defendant, Johanna Su, M.D.'s demurrer to the third and fourth causes of action in plaintiffs' first amended complaint is SUSTAINED without leave to amend. Plaintiffs' opposition is unsupported by any factual allegations or supporting legal authority. The "court may treat [unsupported legal arguments] as waived, and pass it without consideration." (<i>Mansell v. Board of Administration</i> (1994) 30 Cal.App.4th 539, 546.) The third cause of action for negligent infliction of emotional distress by the baby Emma Rodriguez against Su, is not an independent tort. Since Emma Rodriguez's first and third causes of action are based on the same allegations, the third cause of action for negligent infliction of emotional distress is impermissibly duplicative of the first cause of action for professional negligence resulting in birth injury. (See <i>Award Metals, Inc. v. Superior Court</i> (1991) 228 Cal.App.3d 1128, 1135; <i>Selleck v. Globe Int'l</i> (1985) 166 Cal.App.3d 1123, 1136.) The fourth cause of action for fraudulent concealment claim fails because the factual allegations negate Emma Rodriguez's reliance. The FAC alleges plaintiff Rodriguez was born prematurely on or about 7/12/24. (FAC, ¶¶10-11.) The FAC then alleges the concealment occurred on 8/6/24, when plaintiff Rodriguez was only about 25 days old. (See FAC, ¶¶ 15, 48.) Based on these facts, plaintiff Rodriguez was too young to have appreciated the significance of the concealed fact, i.e., the removal of the medication from plaintiff Garcia's allergy list, and too young to have changed her conduct had she known of the concealed fact. Su remains a defendant on the first cause of action for professional negligence. Su is thus ORDERED to file an answer within 5 days. Motion to Strike Portions of First Amended Complaint Defendant Johanna Su, M.D.'s motion to strike is GRANTED.

		Defendant moves to strike “and reasonable attorneys fees” from page 8, line 21, prayer item no. 5 of the First Amended Complaint. The court disregards Su’s argument concerning the claim for restitution at prayer item no. 3, which is raised for the first time in its reply. A moving party is required to state the grounds upon which a motion is made in its notice of motion. (Code Civ. Proc., § 1010.) Plaintiffs did not file an opposition to this motion. Instead, Plaintiffs filed an opposition to defendant Providence St. Jude Medical Center’s motion to strike, which is not scheduled for hearing until 9/18/2026. (See ROA 44.) Each party to a lawsuit must pay his or her own attorneys fees, unless a statute or contract provides otherwise. (Code Civ. Proc., § 1021; <i>Samantha C. v. State Dept. of Developmental Services</i> (2012) 207 Cal.App.4th 71, 78.) Su to give notice.
11	Morehead vs. Strawn 30-2025-01478447-CU-MM-CJC	Demurrer to First Amended Complaint Defendants Jon Bradley Strawn, MD and Scultura Plastic Surgery’s unopposed demurrer to the First Amended Complaint (FAC) is SUSTAINED with 10 days leave to amend for all the reasons argued in the demurrer. Motion to Strike Portions of First Amended Complaint Defendants John Bradley Strawn, MD and Scultura Plastic Surgery’s unopposed motion to strike is GRANTED with 10 days leave to amend for all the reasons argued in the motion. Clerk to give notice.
12	Bodde vs. Pineda 30-2025-01459968-CU-OR-CJC	Motion for Summary Adjudication Plaintiff Edward H. Bodde’s motion for summary adjudication against defendant Alba Luz Pineda for an interlocutory judgment for partition is DENIED. Plaintiff’s Evidentiary Objections to Defendant’s Evidence are OVERRULED. Plaintiff’s Request for Judicial Notice is GRANTED. The grant deeds are sufficient to make a prima facie showing of the passage of title. Plaintiff has met his initial burden.